REPUBLIC OF KENYA

IN THE CHIEF MAGISTRATE'S COURT AT BUNGOMA

CIVIL SUIT NO. 412 OF 2014

BETWEEN

PETER SIMIYU WEKESA ..... PLAINTIFF

AND

TUMAINI SACCO SOCIETY LIMITED ..... DEFENDANT

RULING

Coram: Hon. J. M. Nabwire-Opiyo, Senior Resident Magistrate

Delivered on 17th March 2015

1. The Defendant has raised a preliminary objection that this court lacks jurisdiction because the dispute, concerning the refund of the Plaintiff's deposits of KES 286,400, is a dispute between a co-operative society and a member.

2. Disputes of that nature fall within the exclusive jurisdiction of the Co-operative Tribunal, and the Plaintiff has not shown any reason why the Tribunal cannot determine it.

3. The preliminary objection is upheld and the suit is struck out with no order as to costs. The Plaintiff is at liberty to file his claim before the Co-operative Tribunal.

J. M. NABWIRE-OPIYO
SENIOR RESIDENT MAGISTRATE

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